

ACCOUNT
OF THE
TERRIFIC AND FATAL RIOT

AT THE
New York Astor Place Opera House,

On the night of May 10th 1840 ;

WITH THE
QUARRELS OF FORREST AND MACREADY,

INCLUDING ALL THE CAUSES WHICH LED TO THAT

AWFUL TRAGEDY !

Wherein an infuriated mob was quelled by the Public Authorities and Military,
with its mournful termination in the

Sudden Death or Mutilation of more than Fifty Citizens,

WITH FULL AND AUTHENTIC PARTICULARS.

"LET JUSTICE BE DONE THOUGH HEAVENS FALL."

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THE TERRIFIC AND FATAL RIOT AT THE NEW-YORK ASTOR
PLACE OPERA HOUSE ON THE NIGHT OF MAY 10TH, 1849 ***



SCENE OF THE RIOT.

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Entered, according to Act of Congress, in the year 1849,
BY H. M. RANNEY,

In the Clerk's office of the District Court of the United States, in and for the
Southern District of New York.

THE RIOT.



CHAPTER FIRST.

THE NIGHT OF THE 10TH OF MAY.

On the night of the 10th of May, 1849, the Empire City, the great metropolis of the Union, was the scene of one of those horrors of civilization, which for a time make the great heart of humanity stop in its beatings. In the darkness of night, thousands of citizens were gathered in a central square of the most aristocratic quarter of New York—gathered around one of its most conspicuous and magnificent edifices, the Astor-Place Opera House.

This Opera House was built expressly for the performance of the Italian Opera, but has been used at intervals for the legitimate drama, for vaudevilles, and for balls and concerts. It is fitted up and decorated with taste and magnificence, and in the opera seasons has been attended by the most wealthy and fashionable people, who have made extravagant displays of luxurious adornment. While the private boxes were taken by the season, by those who wished to enjoy the music, liked the display, and could afford the expenditure, the other seats were let at a dollar admission, and the upper tier or amphitheatre was reserved for people of humbler means or more modest pretensions, at twenty-five cents a ticket.

Around this edifice, we say, a vast crowd was gathered. On the stage the English actor Macready was trying to play the part of *Macbeth*, in which he was interrupted by hisses and hootings, and encouraged by the cheers of a large audience, who had crowded the house to sustain him. On the outside a mob was gathering, trying to force an entrance into the house, and throwing volleys of stones at the barricaded windows. In the house the police were arresting those who made the disturbance—outside they were driven back by volleys of paving-stones.

In the midst of this scene of clamor and outrage, was heard the clatter of a troop of horse approaching the scene. “The military—the military are coming!” was the exclamation of the crowd. Further on was heard the quick tramp of companies of infantry, and there was seen the gleam of bayonets. A cry of rage burst from the mob. The appearance of an armed force seemed to inspire them with a sudden fury. They ceased storming the Opera

House, and turned their volleys against the horsemen. Amid piercing yells and execrations, men were knocked from their horses, the untrained animals were frightened, and the force was speedily routed, and could not afterwards be rallied to perform any efficient service.

Now came the turn of the infantry. They marched down the sidewalk in a solid column; but had no sooner taken up a position for the protection of the house, than they were assailed with volleys of missals. Soldiers were knocked down and carried off wounded. Officers were disabled. An attempt to charge with the bayonet was frustrated by the dense crowd seizing the muskets, and attempting to wrest them from the hands of the soldiers. At last the awful word was given to fire—there was a gleam of sulphurous light, a sharp quick rattle, and here and there in the crowd a man sank upon the pavement with a deep groan or a death rattle. Then came a more furious attack, and a wild yell of vengeance! Then the rattle of another death-dealing volley, far more fatal than the first. The ground was covered with killed and wounded—the pavement was stained with blood. A panic seized the multitude, which broke and scattered in every direction. In the darkness of the night yells of rage, screams of agony, and dying groans were mingled together. Groups of men took up the wounded and the dead, and conveyed them to the neighboring apothecary shops, station-houses, and the hospital.

The horrors of that night can never be described. We looked over the scene that misty midnight. The military, resting from their work of death, in stern silence were grimly guarding the Opera House. Its interior was a rendezvous and a hospital for the wounded military and police. Here and there around the building, and at the corners of the streets were crowds of men talking in deep and earnest tones of indignation. There were little processions moving off with the dead or mutilated bodies of their friends and relations. A husband, uttering frenzied curses, followed his mortally wounded wife to the hospital. An aged mother found her only son, the sole support of her declining years, in the agonies of death. Many a wife sat watching at home, in terror and alarm for her absent husband. It was an evening of dread—and it became a night of horror, which on the morrow, when the awful tragedy became more widely known, settled down upon the city like a funeral pall.

The result of that night's work was the death of twenty-two victims, either shot dead upon the spot or mortally wounded, so that they died within a few

days; and the wounding of some thirty more, many of whom will be maimed for life. Into the causes which led to a result so fatal, and all the circumstances attending it, it will now be our duty to inquire.

CHAPTER SECOND.

FORREST AND MACREADY.

MR. EDWIN FORREST, the American Tragedian, was born, some forty-five years ago, in the city of Philadelphia. He was born in humble life, and worked his way up from poverty and obscurity to wealth and fame, by the power of genius. When a boy, he made his first histrionic efforts in an amateur company; afterwards, he made a professional tour at the west.

After various adventures, young Forrest found himself in the city of New York, in the year 1826, when Gilfert was about to open the Bowery Theatre. He wanted a star of powerful attraction, and his experienced eye fell on Forrest. He was engaged—puffed in all the papers as the *Native Tragedian*—the patriotism of New-Yorkers was appealed to—Forrest used his mental gifts and great personal advantages with discretion and effect, and became a star of the first magnitude; so that, in a short time, he demanded and received two hundred dollars a night for his performances; and, with energy and temperate habits, has been able to accumulate an ample fortune.

After his first successes—determined to shine alone as a star of the first magnitude—he offered a prize of five hundred dollars for the best tragedy—suiting his powers as the hero; and the result was, Mr. Stone's "Metamora." Soon after, he secured the "Gladiator," written by Dr. Bird. These have been his most successful performances, and in them he has had no competitor, nor is it likely that he would find an equal.

Mr. William C. Macready is an English actor of great eminence. He was born in the city of Cork, (Ireland,) and must now be nearly seventy years old. In the early part of his theatrical career, he was most distinguished in such parts as "Virginius," "William Tell," "Pierre," "Carwin," &c.; but of late, he has given his chief attention to the plays of Shakspeare—in which he has shown himself a thorough artist.

In 1827—one year after the successful commencement of Mr. Forrest's career as a star of the first magnitude—Mr. Macready visited the United States. In a fit of petulance, in which such actors are too apt to indulge, Mr.

Macready came near fomenting a disturbance in Baltimore, which, but for his adroit management, might have caused him then to have been driven from the American stage. In playing "William Tell," the property-man had forgotten to furnish the arrow to be broken; and Macready was obliged to break one of his shooting arrows. In his anger at the offending party, he said—"I can't get such an arrow in your country, sir!" or, as it was reported—"I can't get wood to make such an arrow in your country!" This was construed into an insult to the country. Anonymous letters were sent to the newspapers; but, as these were sent to Mr. M., he had an opportunity to make an explanation, and avoid a row.

Macready and Forrest were starring through the country, playing alternate engagements—but not, so far as we know, developing any very decided feelings of rivalry. Their roles of characters, and spheres of action, were quite apart; and when they met each other, their intercourse—as it was many years afterward—was of the most gentlemanly character.

About the year 1835, Mr. Forrest went to Europe, and spent some time in travelling on the continent; after which, he returned to America for a short time; and then went back to England, to fulfil professional engagements—in which he was so highly successful, that on his return, he was honored with a public dinner in Philadelphia; and about this time, he was tendered a nomination to Congress by the Democracy of New York—before whom he delivered a Fourth of July oration.

In 1844, Mr. Macready visited the United States. He and Mr. Forrest had become intimate in England; and here, Mr. F. tendered him the courtesies due to so distinguished a professional brother; but it so happened, that in most of the cities where Macready was engaged, there were more theatres than one—and, of consequence, rival managers. Where one of these had secured Mr. Macready, the other was anxious to get the best talent to be found to run against him; and there was no one so available as Mr. Forrest—who is not the man to refuse a profitable engagement, nor did any rule of courtesy require that he should do so.

The result was, that the constant rivalry of Forrest, though carried on in the most friendly manner, could not fail to injure the success of Macready. A certain degree of partizanship was everywhere excited—for Forrest was everywhere placarded as the "*American Tragedian*,"—and the tour of Mr.

Macready was comparatively a failure. A sensitive man could not but feel this; and whether he made any complaint or not, his friends saw what the difficulty was, and felt not a little chagrined about it; and when Mr. Forrest made his next and last professional visit to England, this feeling among the friends of Macready, in the theatrical press and the play-going public, found its vent. The opposition to him was, from the first, marked and fatal; and, so far as the metropolis was concerned, his tour was a failure. It was only in the provinces—away from London influence—that he met with any degree of success.

There was no need of Mr. Macready taking any active part in this matter; and there is no proof that he did so, but much to the contrary; but Mr. Forrest hastily and indignantly, and, we doubt not, sincerely, charged it upon Mr. Macready; and one night, when the latter was playing in “Hamlet,” at the Theatre in Edinburgh, Mr. Forrest, who was seated in a private box, had the bad taste, as well as bad feeling, to hiss a portion of his performance in the most marked and offensive manner.

The following letter from Mr. Forrest gives his own account of this affair, which differs somewhat from the statements of Mr. Macready’s friends, as will be seen hereafter.

*To the Editor of the London Times,—SIR,—*Having seen in your journal of the 12th instant, an article headed “Professional Jealousy,” a part of which originally appeared in *The Scotsman* published in Edinburgh, I beg leave, through the medium of your columns, to state, that at the time of its publication, I addressed a letter to the Editor of *The Scotsman* upon the subject, which, as I then was in Dumfries, I sent to a friend in Edinburgh, requesting him to obtain its insertion; but as I was informed, *The Scotsman* refused to receive any communication upon the subject. I need say nothing of the injustice of this refusal. Here then I was disposed to let the matter rest, as upon more mature reflection, I did not deem it worth further attention; but now, as the matter has assumed “a questionable shape” by the appearance of the article in your journal, I feel called upon, although reluctantly, to answer it.

There are two legitimate modes of evincing approbation and disapprobation in the theatre—one expressive of approbation, by the

clapping of hands, and the other by hisses to mark dissent; and as well-timed and hearty applause, is the just meed of the actor who deserves well, so also is hissing, a salutary and wholesome corrective of the abuses of the stage; and it was against one of these abuses that *my* dissent was expressed, and not, as was stated, “with a view of expressing his (my) disapproval of the manner in which Mr. Macready gave effect to a particular passage.” The truth is, Mr. Macready thought fit to introduce a fancy dance into his performance of “Hamlet,” which I thought, and still think, a desecration of the scene, and at which I evinced that disapprobation, for which the pseudo-critic is pleased to term me an “offender,” and this was the only time during the performance that I did so, although the writer evidently seeks, in the article alluded to, to convey a different impression. It must be observed also, that I was by no means “solitary” in this expression of opinion.

That a man may manifest his pleasure or displeasure after the recognised mode, according to the best of his judgment, actuated by proper motives, and for justifiable ends, is a right, which, until now, I have never once heard questioned, and I contend, that right extends equally to an actor, in his capacity as a spectator, as to any other man; besides, from the nature of his studies, he is much more competent to judge of a theatrical performance than any *soidisant* critic, who has never himself been an actor. The writer of the article in *The Scotsman*, who has most unwarrantably singled me out for public animadversion, has carefully omitted to notice the fact, that I warmly applauded several points of Mr. Macready’s performance; and more than once I regretted that the audience did not second me in so doing. As to the pitiful charge of professional jealousy preferred against me, I dismiss it with the contempt it merits, confidently relying upon all those of the profession with whom I have been associated, for a refutation of this slander.

Yours, respectfully,

EDWIN FORREST.

March, 1846.

—*Times*, 4th of April.

CHAPTER THIRD.

THE QUARREL RECOMMENCED IN AMERICA.

MR. FORREST, chagrined by his failure in England, and maddened at what he imagined to be the malign influence of Macready, returned to the United States after a vain attempt to secure an engagement in Paris, in which he supposed the same influence had defeated him. He had publicly hissed Macready in Edinburgh, had avowed the act, and given his reasons. His friends here felt much as the friends of Mr. Macready had felt in England; and when the latter last year came on another professional visit to the United States, he found that a bitter feeling had been raised against him, which found its first expression, so far as we know, in the following article, that appeared in the Boston Mail on the morning of Mr. Macready's appearance at the Howard Athenæum, Boston, Monday, Oct. 30th, 1848.

[Boston Mail, Oct. 30th, 1848.]

More about Macready—His abuse of Forrest in Europe—Endeavors to put him down in Paris, London and Edinburgh—His Intrigue with Bulwer to prevent Forrest playing in Bulwer's Pieces—His Abuse of Americans.

Mr. Macready has at length arrived, and next to the grand water celebration, will create such excitement, as will emphatically mark the present epoch in time's calendar. He plays this evening at the Howard Athenæum, and refuses to show himself for less than one dollar a ticket. This was his price in New York, and with the exception of the first night, resulted in a "beggarly account of empty boxes." We repeat what we said in a former article, that Mr. Pelby, the enterprising manager of the National Theatre, deserves immortal honors for not acceding to the dictatorial terms of this actor autocrat. Although Macready saw fit on his opening night in New York, on being called out by some friends, to slur a "*certain penny paper*," that had "*dared*" to express an opinion regarding his talents and conduct, we shall not by any means give him the retort churlish; we only pity his ignorance

of the institutions of this country, and hope for his own credit's sake that he will not, when he gets home, write a black book about American manners, &c., *a la* Trollope and others, but if he does, that he will spare us in the production of his brain. The reader will no doubt ask, what fault we find with Mr. Macready. Has he not the same right as other men have, to do as he pleases? We answer yes. He has a right to come to this country in the exercise of his profession; he has a right to demand a dollar from every person who witnesses his acting, and if managers of Theatres are willing to accede to his arbitrary proposals, he has certainly a right to make them. We complain not of any of these. Our charges against Macready are based upon more important grounds. It is his conduct in his own country in relation to Mr. Forrest, that we are about investigating; *his inhospitality, his crushing influence, his vindictive opposition, and his steadfast determination to ruin the prospects of that gentleman in England*, that we bring to his door. Let him deny them if he can. Every true American takes a pride in that which represents his country's interests, industry, and enterprise, and from the smallest commodity gathered from his soil to the loftiest labors of his genius, his ambition goes with it, and the strong arm of his power will protect it in every clime. Mr. Edwin Forrest is titled the American Tragedian—he is justly entitled to that honor—he has acquired it by his own labors; from a poor boy in a circus, he has arisen to be a man of fame and wealth, all of which he has lastingly gained by enterprise and talent, and secured both by economy and TEMPERANCE.

Every American-born man is willing that Mr. Forrest should wear this title, and when he visited England they were anxiously interested in his success. Macready had previously been in this country, and played engagements in every city, and made a fortune. He was extolled by the press, and treated as a gentleman by the citizens of every place visited. But instead of returning this kindness, he acted openly towards Mr. Forrest as his determined foe. We speak by card, and write upon the very best information, viz., the highest authority. In Paris Mr. Macready and Mr. Forrest met. The latter was anxious to [Pg 11] appear on the French boards; but Macready threw obstacles in the way, and this was the first time that the two parties were enemies. Mr. Mitchell, the enterprising lessee of St. James Theatre in London, took an English

company of actors to the French capital, with Mr. Macready at the head of the list. Macready was to be the hero—the great attraction of Paris. He failed, however, to draw money to the treasury, and Mr. Mitchell lost a large sum by the speculation, or rather would have lost it, if Louis Philippe had not made him most liberal presents. Mr. Forrest had letters of introduction to Mr. Mitchell from his friends in London, but Macready was jealous, lest Forrest should prove to be *the* great star, and he cautioned Mitchell not to allow Forrest to appear. The result was that Mr. Mitchell refused to see Mr. Forrest.

The parties returned to London. The hypocrisy of Macready is apparent in his note of invitation to Mr. Forrest to dine with him. The latter, knowing the intrigue that had been carried on in Paris between Macready and Mitchell, refused, as every high-minded man should, to dine with him. This is a very different version to that recently given by some of Macready's friends—if friends he have—that Forrest was offended because he was not invited to dine; as if such a man as Mr. Forrest could take offence at such a trifle, when at the same time he was invited to dine with many of the leading nobility of England, but especially of Scotland, where he passed several months as their guest.

The next mean act towards Forrest, brought about through the influence of Macready, was when Mr. F. appeared at the Princess's Theatre in London. Mac had been endeavoring for a long time to effect an engagement with some London manager, but was unsuccessful. The success of Forrest stung him, and he resolved to "put him down." It was said at the time that he or his friends actually hired men to visit the theatre, and hiss Forrest off the stage, and Forrest was consequently received with a shower of hisses before he was heard. This mean conduct was followed up by the press, by which Forrest was most outrageously assailed, and not Forrest alone, but his country, which is proud to own him as one of her sons.

Forrest and Macready next met in Edinburgh, and from this city were sent forth the grossest calumnies against Forrest. Macready was playing at the Theatre Royal in *Hamlet*—Forrest was present. During the beginning of the piece Mr. Forrest applauded several times, and, as we are informed by an eyewitness, he started the applause when some brilliant effect had been given to a passage, so that the whole house

followed him. But now comes Forrest's great sin—that giant sin which Mac will never forgive—the sin of hissing Macready for dancing and throwing up his handkerchief across the stage in the *Pas de Mouchoir*.

Mr. F. not only hissed, but the whole house hissed, and yet Macready dared to write to London, that Forrest had singly and alone attempted to hiss him from the stage.

To show that Mr. Forrest was not alone in this matter, we are able to state that two weeks afterwards *Hamlet* was repeated, when the whole house again hissed Macready's dance across the stage.

Out of this simple incident Macready contrived to create a great deal of sympathy for himself. He is, or was, part proprietor of the *London Examiner*; or if not sole owner, he possesses the body and soul of its theatrical critic, Foster, who does all kinds of dirty work for his master. Macready gave the cue to Foster, and Forrest was denounced by the *Examiner* and other papers, in which Foster or Mac had any influence. A false coloring was put on this affair, and Mac appeared to the world as a persecuted man, whereas Forrest was the one who met with persecution at every corner—in Paris, in London, in Edinburgh, and in London a second time.

But Macready's persecution did not stop here. Forrest wished to appear in London, in Bulwer's *Lady of Lyons* and *Richelieu*. To do this, permission must be obtained of the author. Forrest addressed a note to Bulwer, asking his terms for the plays. After a long delay, Bulwer replied, that he should charge Forrest £2 per night for the use of them, and he must play 40 nights! Such terms for plays, that had in a great measure lost their interest, compelled Forrest to reject them. It was ascertained that Macready and Bulwer had been much [Pg 12] together, and that the former had prevailed on the latter not to allow Forrest the use of his compositions.

Forrest could not entertain any jealous feelings towards Mac, for he drew crowded houses during his engagement at the Princess's Theatre, whereas Macready had very slim audiences; and on one occasion we know that our own charming actress, Mrs. Barrett, on one of the off-nights, at the time Mac was playing, actually drew more money to the treasury than Macready.

We have now given a plain statement of facts, and such as cannot be controverted. It proves that actors, like Macready, Anderson, and others, find it very hard scratching in their own country, and much better pickings here. It is to be hoped, however, that we Americans will finally become awakened to the mercenary motives of such artistes, and when we have any surplus of dollars to spend, that we will be generous and just to our own home genius.

Here is displayed the feeling of the friends of Mr. Forrest, and to a great extent of Mr. Forrest himself, for the writer of this article asserts that its statements are made on the “very highest authority.” On his part Mr. Macready unwisely alluded to this article in one of his before-the-curtain speeches, speaking contemptuously of the attacks of a certain penny paper. But the Bostonians are a quiet people, and Macready and Forrest played through their engagements without any popular demonstration. At New York Macready played at the Opera House, and Forrest at the Broadway Theatre. There were rumors of a disturbance, but they amounted to nothing. Both engagements were finished in peace, and both actors went to fulfil engagements at the rival theatres in Philadelphia.

Now Forrest had made some pretence of retiring from the stage—he had built him a splendid castle on the banks of the Hudson, and had achieved a splendid fortune—but here he was, following up Macready step by step, and making no concealment of his enmity. His friends were doubtless busy, especially in Philadelphia, his birth place. The two actors made mouths and speeches at each other. One night Macready alluded to the ungenerous treatment he had received from a rival actor. This brought Forrest out in the following:—

CARD.

Mr. Macready, in his speech, last night, to the audience assembled at the Arch Street Theatre, made allusion, I understand, to “an American actor” who had the temerity, on one occasion, “*openly* to hiss him.” This is true, and by the way, the *only* truth which I have been enabled to gather from the whole scope of his address. But why say “an American actor?” Why not openly charge me with the act? for I *did* it,

and publicly avowed it in the Times newspaper of London, and at the same time asserted my right to do so.

On the occasion alluded to, Mr. Macready introduced a fancy dance into his performance of Hamlet, which I designated as a *pas de mouchoir*, and which I hissed, for I thought it a desecration of the scene, and the audience thought so, too, for in a few nights afterwards, when Mr. Macready repeated the part of Hamlet with the same “tom-foolery,” the intelligent audience of Edinburgh greeted it with a universal hiss.

Mr. Macready is stated to have said last night, that up to the time of this act on my part, he had “never entertained towards me a feeling of unkindness.” I unhesitatingly pronounce this to be a wilful and unblushing falsehood. I most solemnly aver and do believe, that Mr. Macready, instigated by his narrow envious mind, and his selfish fears, did *secretly*—not *openly*—suborn several writers [Pg 13] for the English press, to write me down. Among them was one Forster, a “toady” of the *eminent tragedian*—one who is ever ready to do his dirty work; and this Forster, at the bidding of his patron, attacked me in print even before I appeared upon the London boards, and continued his abuse at every opportunity afterwards.

I assert, also, and solemnly believe, that Mr. Macready connived, when his friends went to the theatre in London to hiss me, and did hiss me, with the purpose of driving me from the stage—and all this happened many months before the affair at Edinburgh, to which Mr. Macready refers, and in relation to which he jesuitically remarks, that “until that act, he never entertained towards me a feeling of unkindness.” Bah! Mr. Macready has no feeling of kindness for any actor who is likely, by his talent, to stand in his way. His whole course as manager and as actor proves this—there is nothing in him but self—self—self—and his own countrymen, the English actors, know this well. Mr. Macready has a very lively imagination, and often draws upon it for his facts. He said in a speech at New York, that there, also, there was an “organized opposition” to him, which is likewise false. There was no opposition manifested towards him there—for I was in the city at the time, and was careful to watch every movement with regard to such a matter. Many of my friends called upon me when Mr. Macready was

announced to perform, and proposed to drive him from the stage for his conduct towards me in London. My advice was, do nothing—let the superannuated driveller alone—to oppose him would be but to make him of some importance. My friends agreed with me it was, at least, the most dignified course to pursue, and it was immediately adopted. With regard to “an organized opposition to him” in Boston, this is, I believe, equally false, but perhaps in *charity* to the poor old man, I should impute these “chimeras dire,” rather to the disturbed state of his guilty conscience, than to any desire on his part wilfully to misrepresent.

EDWIN FORREST.

Philadelphia, Nov. 21, 1848.

This violent and vindictive, but characteristic manifesto, as may be supposed, did not help Mr. Forrest’s cause very materially, with quiet and well-judging people, but it probably found sympathy among heated partizans, and those who supposed the honor and glory of the country was at stake. Mr. Macready appears to have made up his mind at once to sue Forrest for a libel, and accordingly he issued the following:—

CARD
TO THE PUBLIC OF PHILADELPHIA.

In a card published in the Public Ledger and other morning papers of this day, Mr. Forrest having avowed himself the author of the statements, which Mr. Macready has solemnly pledged his honor to be without the least foundation, Mr. Macready cannot be wanting in self-respect so far as to bandy words upon the subject, but as the circulation of such statements is manifestly calculated to prejudice Mr. Macready in the opinion of the American Public, and affect both his professional interests and his estimation in society, Mr. Macready respectfully requests the public to suspend their judgment upon the question, until the decision of a Legal Tribunal, before which he will immediately take measures to bring it, and before which he will prove his veracity, hitherto unquestioned, shall place the truth beyond doubt.

Reluctant as he is to notice further Mr. Forrest's Card, Mr. Macready has to observe, that when Mr. Forrest appeared at the Princess's Theatre in London, he himself was absent some hundred miles from that city, and was ignorant of his engagement until after it had begun; that not one single notice on Mr. Forrest's acting appeared in the Examiner during that engagement (as its [Pg 14] files will prove.) Mr. Forster, the distinguished Editor, whom Mr. Macready has the honor to call his friend, having been confined to his bed with a rheumatic fever during the whole period, and some weeks before and after.

For the other aspersions upon Mr. Macready, published in the Boston Mail, and now, as it is understood, avowed by Mr. Forrest, Mr. Macready will without delay appeal for legal redress.

JONES'S HOTEL, Nov. 22d, 1848.

Immediately after publishing the above, Mr. Macready committed to his counsel, Messrs. Reed & Meredith, of Philadelphia, authority to commence such legal proceedings as they might deem advisable: and, preparatory thereto, he obtained from England the documentary evidence.

As regards the charge of suborning the English press, it will be sufficient here to refer to the Times, Globe, Observer, Spectator, Morning Chronicle, Morning Post, Weekly Dispatch, Britannia, &c., &c., of dates Dec. 13, 14, 15, 16, &c., which have indignantly and emphatically denied the charge; many of which denials have already been republished in the American newspapers.

It appears, however, that when Mr. Macready came to consult his legal advisers, two eminent Philadelphia lawyers, they wisely advised him to let the matter drop, and be satisfied with his reputation. So Macready went South, and was feted and feasted in New Orleans to his heart's content, but to the grievous discontent of Mr. Forrest and his numerous admirers.

In the meantime, Macready had written to England for evidence to prove that the statements in Mr. Forrest's Philadelphia card were libelous; and when he decided to give up his law suit, he caused these documents to be printed in a pamphlet, which however, he soon withdrew from public circulation. There were letters from Edinburgh to prove that Mr. Forrest was alone in hissing the "fancy dance" in Hamlet; letters from the proprietor and

theatrical critic of the London Examiner, to show that Macready had not influenced any criticisms on Forrest in that paper; from Sir E. Bulwer Lytton, asserting that he had offered his plays to Mr. Forrest for a fair consideration, and had not withheld them at the request of Mr. Macready, with other equally pertinent documents. But what avail were these? The friends of Forrest felt sure that he had been shamefully treated in England, by the friends of Macready; and whether he was a party to the matter or not, they meant to hold him responsible, and therefore it was determined that he should never play another engagement in New York, and that determination was enforced, but oh! at what a fearful sacrifice.

CHAPTER FOURTH.

THE PLOT THICKENS—THE ENGAGEMENT AT THE OPERA. HOUSE—MACREADY DRIVEN FROM THE STAGE.

It must not be supposed that this was the first manifestation of patriotic indignation on the part of the friends of Mr. Forrest, on account of his treatment in England. It was a deep and intense feeling, and was ready to burst out on any fitting occasion. It threatened Mr. Anderson, and in Philadelphia an effort was made to drive him from the stage; but a better feeling prevailed. Anderson was not charged with any ill-will to Mr. Forrest, and the opposition to him was abandoned: yet there were not wanting persons who contended that every English actor ought to be driven from the American stage, in revenge for the insult offered by England to this country, in the person of Edwin Forrest.

But when Macready, who was charged by Forrest himself with being the head and front of this offending, came to the United States, the flame of hatred was ready to burst forth, and the only wonder is, that it remained pent up so long. On his return from the South, Messrs. Niblo and Hackett, who had taken the Opera House for that purpose, announced that Mr. Macready would open an engagement on Monday night, May 7th. Mr. Forrest was playing at the Broadway Theatre. Previous to the commencement of this engagement, Mr. Macready gave a reading of a play of Shakspeare before the teachers of the public schools of New York and Brooklyn.

The announcement of this engagement was the signal for an outbreak of long-smothered indignation. It was determined that Mr. Forrest should be avenged, and that Macready should not be permitted to play before a New York audience. There was a combination of exciting causes—the feeling against England and Englishmen, handed down to us from the Revolution, and kept fresh by the insults and abuse of British writers on American manners—the injury committed against Forrest, with Macready as its

presumed cause, and this was increased by the fact of Macready playing at the aristocratic, kidglove Opera House. Far be it from us to justify these feelings—it is our duty simply to state the fact of their existence.

The public and magistrates have been accustomed to look upon theatrical disturbances, rows, and riots, as different in their character from all others. The stage is presumed to be a correction of the manners and morals of the public, and on the other hand the public has been left to correct, in its own energetic way, the manners and morals of the stage; and magistrates, looking upon it as a matter between the actors and the audience, have generally refused to interfere, unless there was a prospect of a violent breach of the peace, when they have usually ordered the house to be closed. In these theatrical disturbances, performances have been hissed, plays damned, and actors and actresses driven from the stage, with whatever degree of force has been necessary for their rejection. This has been the practice in the United States, as well as in Europe, and no actor, in any free country, has thought of acting with a posse of police at his back; much less, a file of soldiers, or a piece of artillery, to defend his rights.

On the announcement of Mr. Macready's engagement at the Opera House, it was determined that there should be a pretty forcible expression of opinion on the part of those who were indignant at the treatment of Mr. Forrest in England, and were willing, for any reason, to revenge it on Mr. Macready. There was, doubtless, some organization of forces, to bring about this result, and one person, the well-known Capt. Rynders, admits that he purchased and distributed among his friends fifty tickets, with the understanding that those who used them were to assist in hissing Macready from the stage. Other sums of money were given, and when the night arrived, it was estimated, by the Chief of Police, that not less than five hundred persons were engaged in the disturbance.

The night came—the house was crowded, and there was an ominous looking gallery. The curtain rose, and some of the actors, who were popular favorites, were received with obstreperous applause; but when Macready appeared upon the stage, in the character of Macbeth, he was assailed by a storm of hisses, yells, and a clamor that defies description. He stood his ground firmly, and the play went on, but not a word could be heard by the audience. It was in dumb show. The clamor rose higher and higher, and as hisses and threats, cat-calls and yells, were not enough to drive the

obnoxious actor from the stage, less legitimate means were resorted to. Rotten eggs were thrown, pennies, and other missiles; and soon, still more outrageous demonstrations were made, and chairs were thrown from the upper part of the house, so as to peril life.

The Chief of Police was present, with a number of policemen; but the rioters boldly defied the authorities, and no arrests were attempted. It is said, in excuse, that the rioters were in overpowering numbers, that they were prepared to resist and rescue, and that they had even prepared papers of gunpowder to throw into the magnificent chandelier. A large portion of the audience consisted of ladies, whose lives might have been endangered, and there was nothing to do but to stop the performance. The curtain went down; cheers were given for Forrest, and groans for Macready, and the crowd dispersed.

Mr. Macready supposed that his engagement was terminated. He had no idea of ever making a second appearance; but his friends and the enemies of Forrest insisted upon a different course. He was assured that the public would sustain him, and the managers did not wish to lose the profits of his engagement. Mr. Hackett is a personal enemy of Forrest, and he was determined to play Macready against him at all hazards. Finally, a number of influential citizens, men of wealth and standing, with Washington Irving at their head, wrote a formal request to Mr. Macready that he should play out his engagement, and pledging themselves that the public should sustain him; and it was determined and announced that he should appear on Thursday evening, May 10th.

This announcement, as may be supposed, excited the indignation of those who had driven him from the stage. It was a combination of the aristocracy against the people, and in support of English arrogance, and it was determined that Macready should not play, and that he and his supporters should be put down at all hazards. The lessees of the Theatre were informed that the re-opening of the Theatre with Mr. Macready, would be the signal for riot; the magistrates of the city were informed of it, and were implored to avert the calamity by refusing to allow the house to be opened—for as the city authorities have the right to regulate Theatres, and to make them pay five hundred dollars a year for a license, it was presumed that they had also the right to close them. So thought the Mayor, and so he wished to act; but the lessees insisted upon their legal rights, and demanded the protection

of the authorities, and the fatal decision was made which made New York, a few hours afterward, one wide scene of horror.

CHAPTER FIFTH.

THE COMBAT DEEPENS.

The announcement that Mr. Macready would appear at the Opera House in *Macbeth* on Thursday evening produced a varied excitement throughout the community. Those who thought the city disgraced by the scenes of Monday night were anxious to have that disgrace atoned for by his successful re-appearance, while those who sympathized with the mob that drove him from the stage, looked upon his re-appearance as a new insult, and the manner in which it was brought about was as irritating to them as the act itself.

A riot was anticipated by all who were acquainted with the circumstances, except, perhaps the object of popular indignation. Mr. Macready was assured that there would be no difficulty, and he seems to have believed it—but those who so assured him well understood that those who had triumphantly driven him from the stage on Monday were not likely to submit quietly to his re-appearance.

Thursday morning, the leaders on both sides were active. The friends of Forrest were gathering their forces, and distributing tickets for the night's performance, while the lessees of the Opera House applied to the mayor and other authorities of New York for protection. Inflammatory handbills had been posted upon the walls of the city, calculated to increase the excitement. In the mayor's office, the recorder, the chief of police, the sheriff, Major General Sandford, and Brigadier General Hall, were assembled to consult on the means of protecting the Opera House, and enabling Mr. Macready to play *Macbeth*.

The mayor, Mr. Woodhull, advised Niblo and Hackett to close the house, and to avoid a riot, and the probable destruction of property and life; but these gentlemen were determined to stand upon their rights, and the city authorities decided, after consulting together, to sustain them, if necessary, with all the force at their disposal. Mr. Matsell, the chief of police, was asked if the civil force at his disposal would be sufficient for the preservation of the peace, and though he had nine hundred salaried

policemen at his disposal, and the power of calling in specials at discretion, he gave it as his opinion that this force was not sufficient. It was thought necessary to call out the military.

It has been boldly questioned whether all these extraordinary preparations would have been made to protect the legal rights of humble citizens. Rich and influential men had invited Mr. Macready to play at the aristocratic Opera House. Suppose it had been some third-rate actor at the Chatham; suppose the request for him to play had come from the patrons of that establishment. The abstract question of right would have been the same; but there are many who would doubt whether the city authorities would have taken the extraordinary measure of calling out the military—and this was probably the first time such a thing was ever done under any but the most despotic governments.

The fact of the chief of police declaring that his force was not sufficient to preserve the peace—the fact that General Sandford was ordered to call out a military force sufficient for the emergency, proves that the nature and extent of the approaching riot was well understood by the authorities, and still no means were used to prevent it. It seems to have been their policy to let it gather, and come to a head, when, one would suppose, it might easily have been scattered. Had the police arrested a few of the leaders, and kept a close watch on the rioters—had they taken possession of the vicinity of the Opera House in force, and prevented the gathering of a crowd around it, it seems probable that the peace of the city, and the rights of Mr. Macready might have been maintained at a trifling sacrifice. But a different course was decided upon, and the preparations of the military and police were made accordingly. The chief detached two hundred policemen, to be stationed inside the Opera House. He also placed a detachment in the stable of Mr. Langdon, on the opposite side of Astor-Place, and another body in a yard near by. General Sandford ordered out companies from several regiments, as will be more particularly stated hereafter.

And now the news spread all over the city that there was to be a riot. The warning out of large bodies of military, was alone sufficient to excite curiosity; and yet, in all this excitement and anticipation of outrage, the mayor issued no warning proclamation. There was no one to tell hot-headed and misguided men, that it would be at the peril of their lives, if they disturbed the peace. It is evident that they thought they had a right to

prevent Macready from playing. They were doing no more by him than the English had done by Forrest, and they looked upon it as a piece of retributive justice.

It must not be forgotten, that New York, for many years, has been a very quiet city. For ten years, there had not been one serious riot. The principles of law and order are habitually acknowledged, and have seldom been violated. While Philadelphia has been, for years, the scene of the most disgraceful outrages, New York has not known a more serious disturbance than could be controlled by a few policemen. But in this case, every body rushed into a fatal riot, with a mad precipitation. The calling out of the military sent thousands to the scene of conflict, who would not otherwise have gone, swelled the crowd, encouraged the rioters, and contributed to the fatal result.

It is easy to say, people had no business there; they ought to have kept away. It would be hard to show that those who were outside the house had not as good a right to gratify their curiosity as those within. But, right or wrong, we know very well what people will do in such a case. Let it be given out that there is to be a disturbance at any place, and that the military have been called out to put it down, and the consequence will be a gathering crowd, and, if there is the slightest seeming cause, a formidable riot. It seems that all the means used on the tenth of May, to preserve the peace, only helped to bring about the terrible catastrophe.

Mr. Forrest has been charged with actively fomenting these disturbances. Such a charge was made in the *Courier & Enquirer*, but it was promptly retracted, under threat of prosecution for libel, from Mr. Sedgwick, Forrest's legal counsel. It does not appear that he moved at all in the matter. He stood passive, and let the affair shape itself as it might, as there is reason to suppose Mr. Macready had done, in England. On the night of the riot, Forrest played to a full house at the Broadway Theatre.

It would seem, after the publication of the card, signed by Washington Irving, Charles King, and about fifty others, denouncing the outrages of Monday night, and pledging themselves to sustain Macready, that the contest took on a new character. Macready was a subordinate personage, and he was to be put down less on his own account, than to spite his aristocratic supporters. The question became not only a national, but a

social one. It was the rich against the poor—the aristocracy against the people; and this hatred of wealth and privilege is increasing over the world, and ready to burst out whenever there is the slightest occasion. The rich and well-bred are too apt to despise the poor and ignorant, and they must not think it strange if they are hated in return.

CHAPTER SIXTH.

THE SCENES OF THE FATAL NIGHT.

As the hour for the opening of the Opera House approached, excited crowds began to gather from all parts of the city. Hundreds of men were seen walking rapidly up Broadway. There was a great rush for tickets, and at an early hour the house was declared full, and the sale of tickets suspended. Among the audience in the house were seven ladies. The police were at their stations, and the doors and windows were strongly barricaded.

It should here be stated that the Opera House is situated midway between Broadway and the Bowery, one side fronting on Eighth Street, the other on Astor-Place. The end toward Broadway is covered by buildings, but there is an open space to the Bowery.

While the crowd was gathering outside, and endeavoring to force an entrance, in which they were prevented by the police, the curtain rose, and the mock tragedy commenced. Mr. Clark, an American actor, was vociferously applauded in the part of *Macduff*. The entrance of Mr. Macready in the third scene was the signal for a storm of cheers, groans, hisses, and yells. The whole audience rose, and the greatest part, who were friendly to Macready, cheered and waved their hats and handkerchiefs; but when these cheers were spent, the noise had not subsided. A large body in the parquette, and another in the amphitheatre hissed and groaned, and the contest was kept up until a placard was displayed on the stage, on which was written—"The friends of order will remain quiet." The friends of disorder, however, kept up their noise through the first act, when the recorder and chief of police decided to quell the tumult; and in a few moments the noisiest of the rioters were arrested, and conveyed to a room in the basement, and the play went on in comparative quietness.

But by the time the tumult was suppressed in the house, it had gained its height on the outside. A vast crowd numbering ten or fifteen thousand, had gathered around the building, chiefly in Astor-Place, and by the time the arrests were made in the house, and probably in consequence of some communication between the rioters in the theatre and their friends outside,

the house began to be assailed with large paving-stones, of which, owing to the digging of a sewer near by, there was a large supply. The stones crashed against the windows, and in some instances broke through the barricades. After the tragedy was over, the farce commenced, but it was brought to an end by the firing of the military; and the alarmed and excited audience left the theatre by the entrance in Eighth Street, under the cover of the military, while Mr. Macready got away in the disguise of an officer; and mounting a horse, escorted by a party of his friends, he left the city, and the next day took the cars for Boston, whence a few days afterward he sailed to Europe. Before leaving he expressed the deepest regret that he had not refused to appear again, in accordance with his first intention.

From the testimony of the actors and spectators of the terrible scenes which occurred that night, we have selected four accounts—that of SIDNEY H. STEWART, Esq. Clerk of the Police, a man of observation and experience in that department; that of MAJOR GENERAL SANDFORD, the Commander-in-Chief of the military; that of STEPHEN W. GAINES, Esq. and THOMAS J. BELVIN, Esq. disinterested spectators. From the sworn testimony of these four witnesses, may be gathered a pretty correct idea of the action of the public authorities, the police, the military, the rioters, and the spectators.

TESTIMONY OF SIDNEY H. STEWART.

SIDNEY H. STEWART, Clerk of the Police, states what he saw and heard before the arrival of the military: “I left the Tombs that evening in company with Justice McGrath, and arrived at the Astor Theatre about 7 o’clock; soon after the doors were opened, the audience were assembling; on entering the house, I found the theatre filled with people and a large body of the police; most of the police magistrates were there; Judge Edmonds was there also; the understanding with the magistrates, Judge Edmonds, and the Chief of Police, and Recorder, was that no arrests should be made in the house, unless some overt act was committed, tending absolutely to a breach of the peace; the usual indulgence was to be allowed as to the hissing and applauding; that rule was observed. In the course of the evening, demonstrations were made by several in the parquette, by shaking their fists at Macready, threatening him with violence, by twelve or fifteen persons, certainly

not to exceed twenty; an application was made at this time to the Chief of Police to arrest them, and remove them from the house; he delayed the order for some time, and finally sent for the Recorder to consult with him on the propriety of making arrests; after a consultation, it was concluded to make the arrests, which was done; in less than five minutes they were taken into custody, and order comparatively restored; about this time a great deal of hissing was heard in the amphitheatre, and loud applauding; the play was still going on; several arrests were made in the amphitheatre, by order of the Chief of Police and Recorder; about this time, the first breach of peace on the house was a large paving-stone which came through the window into the house; the house continued to be assailed from those without; an alarm was given that a fire was below under the dress circle; it was soon extinguished; large stones were thrown at the doors on Eighth street, smashing in the panels, and doing other damage; the police were ordered into Eighth street, say fifteen men; on my going into the street, I saw a large concourse of people, but those near the door of the theatre were mostly boys, who were apparently throwing stones; several of them were arrested by the police and brought in; I cannot say how many were aiding in the disturbance, but certainly a very small proportion to the crowd collected; the policemen arrested some six or ten of them, and the attack on the door in Eighth street ceased; the attack then, after these arrests, was made with more violence on the front of the theatre in Astor-Place; a very large crowd was collected, yet I could pass in and out with ease, comparatively; this crowd did not appear to be very turbulent; a very large number appeared to be citizens looking on, and not aiding in the disturbance; the majority of those throwing stones were boys from the ages of 12 to 18 years; several of the policemen at this time complained of being struck with stones and badly hurt; the policemen kept making arrests, and bringing them in; I cannot say how many; the crowd appeared to be increasing and more dense; the mob appeared to be determined to accomplish some particular act; there seemed to be a strong determination, although they only threw stones; the force of policemen on Astor-Place amounted to from fifty to seventy-five; the mob then continued to throw stones; the military then came.”

TESTIMONY OF MAJOR GENERAL SANDFORD.

I am Major General commanding the military forces of this county. On Thursday last, I received a message from the Mayor, requesting me to come to his office. I went there, and found the magistrates named by the Mayor assembled. The Mayor informed me of the object of my being sent for. The Mayor has stated correctly my reply, when I was asked in relation to the expediency of issuing an order to call out the Military. After it was decided to issue the order, it was understood by the Magistrates present, that the effort should be first made by the civil authority to preserve the peace, and that the Military should not be called out until that effort failed. I left the Mayor's office after this understanding, and then received this order:

MAYOR'S OFFICE, City Hall, May 10, 1849.

Having reason to apprehend a serious riot this evening, which will require more force to preserve the peace than is possessed by the police, Major General Sandford is requested to hold a sufficient military force in readiness to meet the apprehended emergency.

C. S. WOODHULL, Mayor.

After receiving this order, I ordered one Regiment—the 7th—of Infantry to assemble at the Artillery drill rooms, and one troop of Light Artillery with two 6 pound field pieces, to muster at the Arsenal. I directed a small detachment of Infantry to protect the pieces. The regiment, when assembled, on account of the shortness of the notice, consisted of but little over two hundred men. The regiment is known to the citizens by the title of the National Guard. I went myself, in the evening, to the Artillery drill rooms, and informed the Magistrate that I would remain there to await orders. I understood there was to be a large Police force at the Theatre. Many of the Magistrates thought this force would be sufficient without the military. The regiment was under the command of Col. Duryea. There are eight Captains in the regiment. I cannot say they were all present. Capts. Shumway, Underhill, Pond and Price, were present. We remained there until a verbal message came to me from the sheriff, the purport of which was, that a mob had attacked the house and driven in the Police force, and were assailing

the building; this was between 8 and 9 o'clock, as well as I can remember. On receiving this notice, I immediately ordered the Regiment to get ready for marching, and to distribute their ammunition, which consisted of one thousand rounds of ball cartridges; I sent at the same time an order to the Arsenal yard for the horse belonging to the Regiment to come up immediately to the drill rooms, and march with us to the grounds. The horsemen carried only their sabres; the troops were put on the march, and moved rapidly up Broadway to Astor-Place; the field pieces were Left at the Arsenal; no order was given to the artillery. I was not aware, until I got to the ground, of the extent of the mob; I thought the force I had with me, in connection with the Police force, would be sufficient to preserve the peace. Before getting on the ground, I mounted my horse, and took charge of the cavalry, directing the Infantry to follow close after us. The horsemen, on entering Astor-Place, were formed ten ahead, and advanced in that order until we got nearly opposite the corner of the Opera House; at this place, we were assailed with a shower of stones and brick bats, by which almost every man was hurt, and the horses rendered almost unmanageable; the men pushed rapidly through Astor-Place, and through the whole distance were assailed with a shower of stones; the infantry followed them. The mob extended from Astor-Place to the Bowery; the mounted men, being conspicuous marks, received most of the stones, and were driven off the ground. I dismounted, returned through the mob, and took charge of the Infantry. They were halted in line across the open space beyond the theatre, with a dense mob on both sides of them, who were assailing them with all sorts of opprobrious epithets, and frequent volleys of stones. I ordered Col. Duryea to form a column of division for the purpose of clearing the ground in the rear of the theatre, intending afterward to go to the front. The columns were formed promptly, and moved forward through the mob, until stopped by an excavation in the ground, which I had not previously seen, on account of the darkness of the [Pg 23] night. We filed around this broken ground, and cleared the rear of the theatre, the mob retreating before us as we advanced. Two bodies of troops were stationed at each end of the theatre, extending across the street. I then sent in for the Sheriff and Chief of Police. Mr. Matsell furnished sufficient of the police to take the place of the two lines of military,

and the whole were then put under march; passed through Eighth-st. to Broadway, and around into Astor-Place, the Sheriff at my request accompanied us. We moved down Astor-Place until we got a little past the centre of the theatre. The mob partially retreated to the middle and opposite side of the street; they commenced an attack on the military by throwing paving-stones. The paving in this vicinity had been taken up for the purpose, as I was informed, of laying down water pipes and building a sewer. I ordered the regiment to be divided and to form in two lines across the street; the right wing advanced toward the Bowery, and the left toward Broadway, with the view of driving the mob each way from the front of the theatre; during this period, the men were constantly assailed with showers of stones and brickbats, and many were seriously hurt; a number of men near by and Gen. Hall were struck with stones, and dangerously injured. After giving this order, I advanced toward the middle of the street to Captain Shumway, who led the first company, with Col. Duryea by his side, being outside myself next the mob; the Sheriff was behind me; at this time, we were assailed by a volley of stones, by which about eight out of eleven of the first platoon were more or less injured. Myself, Col. Duryea, and Capt. Shumway were injured. At this time, a pistol was fired by some man in the mob, by which Capt. Shumway was wounded in the leg, and, as I believe, Gen. Hall in the face. Previous to this, the crowd had been repeatedly notified by Gen. Hall and myself, and by other persons whose voices I did not recognise, that they must disperse or they would be fired upon. I was at this time partly knocked down, and when I arose, I found three or four of the front rank partly down, and the head of the column forced back toward the Opera House, the shower of stones at this time being incessant; orders were then given by myself and repeated by Col. Duryea, to charge bayonet; the attempt was made, but the crowd was so close upon the troops that there was no room for the troops to charge, and some of the men had their muskets seized by the crowd; the troops by this time were forced back to the sidewalk; I stated to the Sheriff that it was impossible to maintain our position without firing. I several times called out to the crowd that they must fall back or we would fire; after this the Sheriff gave the order to fire. Gen. Hall, who was a short distance from me, made an exclamation to fire over their heads; the order to fire was

repeated by myself and Col. Duryea, and the men fired once over the heads of the crowd, against Mrs. Langdon's house. A shout then came from the mob, "They have only blank cartridges, give it to them again," and another volley of stones came instantly; the troops were then ordered to fire again; I think the order was given by myself and Gen. Hall; Gen. Hall said, "fire low;" then, for the first time, the mob began to give way; the troops then moved forward, crossing the street, and driving the crowd before them until the troops got near the corner of Lafayette-Place. The mob here rallied at the corner of Lafayette-Place, on one side, and at the corner of the theatre and the broken ground, on the other side, and advanced, throwing volleys of stones; several of the troops were hurt severely, and orders were given for the troops to fire—one half obliquely to the right, the other half to the left upon these two bodies of men; this was done, and the crowd fell back into Lafayette-Place, and the broken ground behind the theatre. There was no firing after this; the mob kept a constant attack upon the troops for some time with stones and brickbats. The whole number of military engaged in the conflict was 210, one half of the line toward Broadway, and the other toward Bowery; the mob has been variously estimated from ten to twenty thousand. Previously to leaving Eighth-st. to go around to the front of the theatre with the troops, I sent up the Light Artillery and the portions of the Sixth Regiment that was to support it. They arrived after the firing had ceased. One gun was placed toward the Bowery, and the other toward Broadway. The Infantry were stationed, and the mob were again told that unless they left, they would be fired upon, and the Artillery used, if necessary. The mob dispersed, and the firing ceased. Upwards of 50 men of this small detachment of 210 men, [Pg 24] were injured, chiefly before the firing commenced. I do not believe that the troops could have withdrawn in safety when the order was given to fire, and that they could not have maintained their position without firing. During a period of thirty-five years of military service, I have never seen a mob so violent as the one on that evening. I never before had occasion to give the order to fire.

TESTIMONY OF STEPHEN W. GAINES.

STEPHEN W. GAINES, sworn, says:—I am a counsellor at law, residing at No. 180 East Broadway; on Thursday evening last, I was at the corner of Astor-Place and Lafayette-Place; I stood upon a pile of boards; I stood there from half-past eight o'clock until after the last discharge of musketry; from the place where I stood, I had a fair view of the Opera House; when I first got there, the space between us and the theatre was filled with people, but not densely crowded at that time; I saw persons throwing stones at the principal entrance, and at the windows of the Opera House; they were nearly in front of the Opera House; sometimes a single stone, and at other times a volley; about fifty feet in front of the house was the principal scene of action; the street toward the Bowery was filled with people; there were no stones thrown from the quarter where I stood, and there were so few actually stoning the house, that it was a surprise to those witnessing it why the police did not stop it; the first I saw of the military was the horse, and then followed the infantry; they came from Broadway, passed the Opera House in Astor-Place, and took their stand near the 4th avenue; I saw no opposition; in about half an hour I saw the horse troops pass up Astor-Place, towards Broadway; I should have left upon the arrival of the military, but so many coming upon the sidewalk, I could not get out; within a short time after, the infantry passed up in front of the house; I saw the fire from the discharge of the muskets as it left the barrels, as the lamps were out; some of them were fired perpendicular, some on an inclined plane towards the house of Mrs. Langdon, and others horizontally; this was the first discharge; we had no intimation of firing where I stood, until I saw the flash; several other volleys were discharged immediately; previous to firing the last volley, the street was nearly cleared; most of the people had left the enclosure where I was; there were, perhaps, half a dozen on the sidewalk in front of where I was; I was still standing on the board, when the last discharge took place up Astor-Place towards the Bowery; between me and the soldiers the space was clear; there was a small number of persons on the corner opposite Mrs. Langdon's house; they were out of the range of the fire; this fire was nearly in the range of where I was standing; I stepped back a pace or two, to bring myself out of the direct line; immediately another discharge took place, that being part of the previous discharge; upon the discharge, a man fell upon the sidewalk

in front of us; there were but a few persons near him at the time; after he fell, he remained on the ground half a minute, some supposed he was shamming being shot; on picking him up, a wound was discovered in his back, by the blood running; we took the wounded man down to the drug store corner Fourth and Wooster street; on examining the body, we found a wound in the lower part of his stomach; his name was Henry Otten, residing at the corner of Hester and Orchard streets; he was standing on the sidewalk at the time he was shot, taking no part in the disturbance; after leaving him, I learned that others had been shot; I have been informed that he has since died.

TESTIMONY OF THOMAS J. BELVIN.

THOMAS J. BELVIN, residing at No. 133 King street, boatman:—On Thursday evening last, I was at the disturbance at the Astor-Place Opera House; I stood on the corner of Lafayette-Place, by Mrs. Langdon's house; when I got there, about half-past-six o'clock, I saw a lot of half-grown boys throwing stones at the Astor Opera House; I passed on the opposite corner, and was talking to two Philadelphians; they were saying how trifling this was to some of their riots; I stayed there until the horse soldiers came, and then the infantry; then there [Pg 25] was a rush with the boys, and we started back, and then returned again to see how the military operated; I was standing on the corner of Mrs. Langdon's house when the first firing took place; when the military left, the boys went back and commenced throwing stones again; I stood there when the first discharge took place; a man fell; I laughed, and so did others, as we thought that it was only blank cartridges to scare them; I heard a man say, "my God, look at this; he's shot;" this was at the first discharge of musketry; I heard no notice given to disperse; they might have done so; after this I started and ran down to the church on the corner of 4th street, and there I stood; I don't know how long I stood there, I was so frightened; I stood there until I heard another banging of muskets, and then I started and ran home as quick as I could; I should not have gone there, if I had known they were going to use lead; I went to see what was going on, like many others; I don't know how long I stood at the church before I

heard the second firing; I was glad to get there; I jumped over several people in making my way to the church.

It is to be observed that the above accounts vary according to the position of the witnesses. Mr. Stewart confines his attention chiefly to the operations of the police; Gen. Sandford to those of the military; while others may be supposed to represent the views and feelings of the mere spectators.

On the examination of Mr. Stewart, he was asked, if, in his opinion, the riot could have been prevented or suppressed by the action of the police, without calling on the military. Though loth to give an opinion, which might be construed into a censure of the authorities, he stated his belief that the whole affair might have been differently managed.

The scene which followed the firing of the military, beggars all description. The wounded, the dying, and the dead, were scattered in every direction. There were groans of agony, cries for help, and oaths of vengeance. The dead and the wounded were borne to the drug stores at the corners of Eighth street and Broadway, and Third Avenue, and others in the vicinity, and surgeons were summoned to attend them. Some were conveyed by the police to the Fifteenth Ward Station-House, and a few carried to the City Hospital. Some of the dead and wounded were laid out upon the billiard tables of Vauxhall Saloon, a large crowd gathered around, and speeches were made by excited orators.

Had none but those actively engaged in the riot been shot by the military, these details would have been sufficiently melancholy. But even then, we are to consider that the men who composed the mob, may have acted, under ordinary circumstances, like honest and respectable citizens. A mob is composed of the same men in a state of temporary insanity, and they should be treated accordingly. Sober and quiet citizens, acting under such a temporary excitement, have committed the greatest outrages. They should be restrained, but not sacrificed, unless under the most imperative necessity.

But in this case, very few of the active rioters were injured—the greater part of the killed and wounded being either spectators, or persons passing by the scene. Thus, Bridget Fagan was walking with her husband along the Bowery, shot through the leg, and died at the Hospital. Mr. Stuart, an old retired merchant, was severely wounded in the neck, while standing in the

Bowery; and Mr. Collins was shot dead while getting out of a car of the Harlem Rail Road. Wm. C. Russell, a lawyer, had his arm shattered while passing around the corner of the Bowery. Mr. Livingston, standing in St. Mark's place, two blocks off, was severely wounded. There were many more such cases.

Of those who were shot down in the immediate vicinity of the Opera House, the greater portion were taking no part in the affair. Mr. George W. Gedney, a broker in Wall-street, who had a wife, to whom he had been married but little more than a year, and one child, was shot instantly dead, as he was standing inside the railing by the Langdon mansion. At the first volley, a ball pierced his brain. His wife knew he had gone to see the riot, and she had had a presentiment of some disaster. She sat watching and waiting for her husband, for it was the first time he had been out at night, without her, since their marriage. She waited until four o'clock in the morning in an agony of terror, when, unable to endure the suspense any longer, she rushed into the street, went to the house of one of her husband's friends, roused him from his slumber, and begged him to go and seek for her husband. The man went, and found poor Gedney a cold corpse. Mrs. Gedney was sitting at the window when he returned, and motioned for him to come to her, but he shook his head mournfully, and passed by in silence. She knew that her beloved husband was no more. Her neighbor, who had not the courage to tell her the awful tidings, sent his wife to comfort her. This is but one of many such cases of domestic affliction, produced by the events of that night of terror.

CHAPTER SEVENTH.

THE DAY AFTER THE RIOT—POPULAR EXCITEMENT— CORONER'S INQUEST—LIST OF THE KILLED AND WOUNDED.

The morning of the eleventh of May was one of sad excitement in the city of New York. The extent of the calamity, the number of the dead and wounded, made a deep and solemn impression. Public opinion was very much divided. The more excitable breathed threats of vengeance, and the military were kept under arms during that and the succeeding day. A meeting was called in the Park, of "Citizens opposed to the destruction of Human Life." Several thousands assembled, and resolutions were passed, thoroughly condemning the authorities for not exhausting the civil power before calling out the military, and characterizing the sacrifice of life as "the most wanton, unprovoked and murderous outrage ever perpetrated in the civilized world;" and calling upon the Grand Jury to indict the Mayor, Recorder and Sheriff, for ordering the military to fire on the citizens. Exciting and inflammatory speeches were made by Edward Strahan, Isaiah Rynders, and Mike Walsh, but the meeting separated without disturbance.

That night, all eyes were turned toward the Opera House, for though it had been closed by the lessees, and though Macready was in Boston, it had been given out that it should be destroyed. The most efficient measures had been taken by the authorities, and a proclamation issued by the Mayor. Gen. Sandford called out four troops of horse artillery, one squadron of cavalry, four regiments of infantry, including the fifth brigade, and a detachment of the veteran artillery, with a 24 pound howitzer. The artillery was planted so as to sweep the streets around the building, and the infantry and cavalry stationed at a convenient distance. The artillery was furnished with grape, and the infantry with ball cartridge.

At dark, an immense crowd filled the streets around the Opera House, but the military took possession of the ground, dispersed the mob, and barricaded the approaches to the scene. The mob, most violent at first in

Broadway, having been driven from that position, made an attack upon the troops in the Bowery, and severely injured several of the soldiers; but the police, aided by the military, arrested or dispersed the offenders. At about 9 o'clock, the mob erected a barricade across 9th street, near the Bowery, to defend themselves from the cavalry, but it was stormed by the police. At one time, the attack upon the City Guard was so severe, that they were ordered to load, and the Recorder proclaimed that another shower of stones would bring one of lead in return; but fortunately the volleys ceased. Bonfires were kindled, but these only made the leaders of the riot conspicuous, and aided the police to arrest them. About thirty arrests were made, the mob driven off in all directions, and at midnight order was restored. Half this efficiency the previous night, would have saved all bloodshed. Order was restored, and though it was reported that a large number of persons had come from Philadelphia, expressly to take part in a riot, the peace of the city was not again disturbed.

On Saturday morning, the Coroner assembled a jury, who proceeded in carriages, to view the bodies of those who were killed. After viewing them, and witnessing a surgical examination of each, the inquest was continued at the Hall of the Court of Sessions. The Mayor, Recorder, Sheriff, Chief of Police, and several military officers and citizens were examined. We have given some of the most important of the testimony.

The Jury retired at half-past six o'clock, on Sunday evening, and after being out a short time, returned the following verdict:

We believe that Geo. A. Curtis, John McDonald, Thos. Aylwood, George Lincoln, Timothy Burns, Henry Otten, George W. Brown, Wm. Butler, George W. Taylor, Owen Burns, Thos. Belman, Neil Gray Mellis, Asa F. Collins, Wm. Harmer, Thos. Keirnan, Mathew Cahill, Geo. N. Gedney, came to their deaths by gun shot wounds, from balls fired by the Military during the riot before the Opera House, on Thursday evening, 10th May inst., by order of the civil authorities of the city of New York; and that the circumstances existing at the time justified the authorities in giving the order to fire upon the mob. We further [Pg 28] believe that if a larger number of the Police had been ordered out, the necessity of a resort to the use of Military might have been avoided.

NEW YORK, May 14, 1849.

JAMES H. PERKINS, Foreman.

O. H. WILSON,	WM. BANTA,
LEONARD H. HEGAR,	J. C. BALDWIN,
JAMES CROPSY,	LEANDER M. SAMMIS,
SAMUEL RAYNOR,	EDWARD C. ROBINSON,
JOSEPH B. BREWSTER,	WM. S. SMITH,
GEO. W. DAWSON,	THOS. S. MILLER,
WILLIAM BALLAGH.	

Five other persons, in a few days afterwards, died of their wounds. The following is believed to be a complete list of all the killed and wounded:

LIST OF THE KILLED.

GEORGE A. CURTIS,

Aged 22 years, born in Chautauque Co., printer; shot through the lungs.

JOHN McDONALD,

Aged fifteen years, born in Ireland, shot through the breast.

GEORGE LINCOLN,

Aged 35 years, appeared to be a sailor; shot in the abdomen.

THOMAS AYLWOOD,

Aged 19, born in Halifax, a clerk; shot in the thigh: died after amputation of the limb.

TIMOTHY BURNS,

16 years, a printer; shot through the right lung.

HENRY OTTEN,

22 years; grocer; shot through the breast. He died in the 15th Ward Station-House, in presence of his aged mother.

GEORGE W. BROWN,

From Boston; clerk; ball passed through left lung.

WILLIAM BUTLER,

24 years; ship joiner; shot through the head.

GEORGE W. TAYLOR,

21 years; house carpenter; shot through the head.

OWEN BURNS,

24 years; born in Ireland; a cartman; shot through the head.

THOMAS BELMAN,

17 years; born in Ireland; laborer; shot through the neck.

NEIL GRAY MELLIS,

27 years; the musket-ball passed directly through the heart; left a wife and one child. The deceased was a nephew to ex-Alderman Neil Gray of the 10th Ward.

ASA F. COLLINS,

45 years; born in this State; business a house agent. The deceased received a ball in the neck, as he was descending from the railroad car.

WILLIAM HARMER,

16 years; a butcher; was brought to the Bellevue Hospital early on Friday morning, having received a ball in the abdomen; he lingered until four o'clock in the afternoon, when death relieved his earthly suffering. He was a native of St. John's, New Brunswick.

THOMAS KEIRNAN,

21 years; born in Ireland; a waiter; shot in the right cheek, the ball passing into the brain.

MATHEW CAHILL,

26 years; born in Ireland; laborer; widower; shot through the right breast; one child.

TIMOTHY McGUINN,

19 years; laborer. The deceased was residing with his mother, in the rear of No. 107 West Thirteenth-street, and died soon after being brought home.

GEORGE W. GEDNEY,

34 years; born in New York; a broker; resided at No. 82 Seventh-street. The deceased received a musket-ball directly through the brain.

JOHN DALZELL,

Was wounded in the hip, and died after amputation of the hip joint.

ROBERT MACLEURGEON,

Aged 20, a native of New York, received a wound while passing through Lafayette-Place; and died at his mother's residence on Monday.

JOHN McKINSLEY,

Shot through the lungs, died on Sunday night.

HENRY BURGUIST,

Known as "Harry Bluff," lived at 410 Pearl-street. Ball grazed the neck, went into the right shoulder, coming out behind the right arm. Died of his wounds at the hospital.

BRIDGET FAGAN,

Irish; 30 years old; shot in the leg, just below the knee. She was two blocks off, walking with her husband on their way home, and fell into his arms. Died after amputation.

Thus TWENTY-THREE PERSONS were either killed on the spot, or died of their wounds shortly after.

LIST OF THE WOUNDED.

The following list is probably incomplete, as many who were not seriously wounded have not been publicly reported:

EDWARD McCORMICK, 135 First Avenue; 19 years old; worked at 200 Mulberry-street. Shot through the side.

CONRAD BECKER, 27 Hudson-street; worked for Mahoney and Thompson, Upholsterers, Chatham-street. Ball went through the right thigh.

GEORGE N. KAY, 28 years of age; merchant; boarded at 107 Chambers-street. Ball in the right breast, going entirely through.

FREDERICK GILLESPIE, a boy; shot through the foot.

A SON OF J. IRWIN, 243 Tenth-street; ball through his leg.

B. M. SEIXAS, jr.,

MATTHEW CARHART, residence First Av., corner of Twelfth-st.; shot through the breast and neck.

Mr. STEWART, of the late firm of Coley, Stewart, and Co., Mobile, retired merchant; while standing in the Bowery was shot in the neck.

Mr. PHILLIP LIVINGSTON, a young man, who was standing in St. Mark's Place, [Pg 30] was badly wounded, the shot entering the fore arm, and coming out near the thumb.

Lieut. J. BROWN; son of Prof. Brown; residence 42 Crosby-street; was shot as he came out of the Amphitheatre door.

Deacon A. M. COLLINS; of the Allen-street Church; was also shot.

WILLIAM SELLECK; 23 years of age; residence 227 Seventh-street; dangerously wounded by a shot; a spectator.

A young Philadelphian; name not ascertained; badly shot through the thigh.

Mr. BRAISTED; of the firm of Secor & Co.; spectator; shot through the knees.

WM. C. RUSSELL, Esq.; a lawyer of Wall-street; left his residence in Fourth-avenue, about half-past 10, and while passing the corner of Lafayette-Place, had his left arm shattered by a ball.

Mr. MARSHALL LEFFERTS; of the firm of Messrs. Geo. B. Moorewood & Co. 14 and 16 Beaver-street; while on duty as an officer, was knocked from his horse by a stone, and seriously wounded.

One of the National Guards had his jaw-bone broken by a paving-stone.

LORENZO D. SNELL, of Philadelphia; 49 Bayard-street; was shot through the thigh.

Mrs. BRENNAN, house-keeper for Mr. Kernachan, corner of Second-avenue and Ninth-street; while passing up the Bowery, on her way home, leaning upon the arm of a man, was struck by a ball in her left thigh, which passed through the fleshy part of this and the right thigh, without injuring the large vessels or the bones.

STEPHEN KEHOE.

Mr. VANDERPOOL; was wounded with a ball at the corner of the eye.

A boy, by the name of STONE.

An instance of heroism is related of one of the wounded, who, when the surgeon was about to examine his case, said, "Never mind me now, but look round and see if there is not some one who needs you more than I do!" The speech was worthy of Sir Philip Sidney. The lives of such men ought not to be lightly sacrificed.

Of the military and police, a large number were wounded, some of them severely, by paving-stones. Capt. Shumway received a flesh wound with a pistol shot.

The military performed their duty, generally, with commendable coolness. Some, it is said, laid down their arms, rather than fire, and others fired into the air; but on the whole, they did quite sufficient execution, especially on those who were not actively engaged in the riot.

CHAPTER NINTH.

WHERE LIES THE BLAME?

The dead are sleeping in their quiet graves. Day by day, time brings its consolations to the afflicted; but has society no lesson to learn from the horrors of which we have given as full a description as could be given, by looking at the mere surface of things? We have shown the causes which produced this dreadful sacrifice of human life—this massacre of innocent and unoffending citizens, for many of the killed were truly such. Let us endeavor to turn the terrible lesson to some useful account.

Those who were actively engaged in the scenes we have described, experience different feelings in regard to it. The mob was made up mainly of well-meaning, but ignorant, rash, and misguided men. The best feelings of our nature, when they are perverted, may produce the worst consequences. In this case, a feeling of patriotism, and a sense of justice, were the ruling motives of those who violated the laws, broke the peace of the community, defied the constituted authorities, and caused the death of twenty-three human beings. They acted in all good conscience, but an unenlightened or misguided conscience is no security against wrong. Some of the worst deeds that were ever committed, were done “in all good conscience.” Thus Christ was crucified by a Jewish mob, and said, “Father, forgive them, they know not what they do.” Thus, in all ages, the worst acts have been committed from the best of motives.

The authorities are probably satisfied with having maintained law and order, though at a terrible sacrifice, and the press has almost unanimously sustained them. But it should be remembered that almost all men are liable to temporary excitements. Mobs are affected with a kind of insanity. The madness of a crowd seems to be infectious. These rioters may, in their calm moments, be good and quiet citizens. We have seen some of the most sober and moral communities excited into a fury of passion. At any rate, they are brethren, and should be dealt with in love and kindness.

But law and order must be maintained; very true—it must be done at all hazards, but it should be done prudently, and with the least possible

sacrifice. Humanity has its claims as well as law; and it may not be necessary to the maintenance of public order, that ignorant and misguided men, laboring under a temporary madness should be shot down like dogs, if they can be controlled by means more gentle.

The military acted naturally, under the circumstances. They were placed in an ugly position by the authorities, suffered severely for it, and obeyed their orders. No doubt, they regretted the fatal necessity. Some idea of the probable feelings of those who fired the fatal volleys, may be judged of from the fact that a brother of Mr. Gedney, who was shot dead at the first fire, was a member of one of the companies that fired the volleys. All men are brethren—but here was brother against brother, in a sense that the most unfeeling can appreciate.

A distinguished clergyman of this city, preaching on the subject of the riot, says of Macready and his right to act—“Though he had been the meanest of his kind, he should have been protected here to the conclusion of his announced engagement, if an army of ten thousand men had been required to wait upon his movements, and a ship of war chartered to convey him to his native land. We have done something to vindicate order and law, and we ought to have done more.”

A zeal for the rights of Mr. Macready and his friends, and for the cause of law and order is commendable—but it must not be forgotten that other rights must have been violated, or this riot could never have taken place. Those ignorant men had a right to education, and to such conditions of cultivation, as would have made them intelligent men and good citizens. They would never have raised their hands against society, had society done its duty to them. Before they committed this wrong, they had been most deeply wronged themselves; and it would be better to provide ten thousand schoolmasters to instruct people, than ten thousand soldiers to prevent the result of their ignorance.

Men can be zealous and indignant about the rights of play actors, or their patrons—and we have no disposition to deny their rights, or to interfere with the lawful exercise of them—but they forget in how many ways the rights of our brethren are violated, and not a word is said in their behalf. Give every man the natural and social rights that belong to him and we

should have few crimes and outrages to complain of, and law and order could be maintained without standing armies or ships of war.

When we go deep into the investigation of social wrongs, we shall find that society brings upon itself the very evils it attempts to subdue. Society, by an unjust distribution of the avails of industry, enables a few men to become rich, and consigns a great mass to hopeless poverty, with all its deprivations and degradations. This poverty produces ignorance, the sense of injustice, grovelling tastes, and a loss of all high ambition. The only wonder is that under such circumstances of wrong and outrage, men are so forbearing, so honest, and so orderly. The only wonder is that more crimes are not committed against both property and life. Thousands of poor people know that they are robbed and plundered every day of their lives—they feel bitterly the hardships and injustice of their lot; but how calmly do they wait God's justice to set them right! How few of them comparatively attempt to right their own wrongs, and to seize upon a portion of what society withholds from them!

This terrible tragedy is a lesson to us all. None can escape its warning. We are all responsible, all guilty; for we make a part of a society that has permitted thousands of its members to grow up in poverty and ignorance, and exposed to the temptations of vice and crime. This mob is but a symptom of our social condition, and it points out a disease to which we should lose no time in applying a proper remedy.

THE END.

TRANSCRIBER'S NOTES.

1. Silently corrected simple spelling, grammar, and typographical errors.
 2. Retained anachronistic and non-standard spellings as printed.
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